

2. Withdrawing Counsel shall file and serve an updated Declaration in Support of Motion to be Relieved as Counsel no later than August 14, 2026.
3. Notice is given that the Hon. Charles Steve Treat, sitting on temporary assignment, will be presiding over the law and motion calendar on August 19, 2026.

18. 9:00 AM CASE NUMBER: N25-1803

CASE NAME: CLAIM OF:NOAH BINSOL

***HEARING ON MINOR'S COMPROMISE RE NOAH BINSOL**

FILED BY: BINSOL, JASON

TENTATIVE RULING:

Summary

Petitioner Jason Binsol's Petition for Approval of Compromise of Minor Noah Binson ("Minor") Claim is granted, as set forth below. No appearance is required at the hearing on August 12, 2026.

Background

On September 10, 2025 Petitioner Jason Binsol, parent and guardian ad litem for his child, Minor, filed the Petition through counsel, Thomas Morgan, to compromise the claim that Minor had against Nicholas Rogers Martin, Jr. related to an accident that occurred on State Route 4 in Antioch, CA on October 8, 2024. In that accident, Minor sustained soft tissue injuries. He has fully recovered and there are no permanent injuries.

Geico Insurance Company offered settlement in the amount of \$11,658.99, of which \$ 7,694.25 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$3,964.74 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Analysis

A Petition for Minor's Compromise is a mandatory legal procedure in California required to settle any legal claim or lawsuit belonging to a minor child. Under state law, minors lack the legal capacity to sign binding contracts or settlement releases, meaning court approval is required to finalize the settlement and secure the proceeds.

California Probate Code §§ 3500–3613 provides the primary framework for the procedure and disposition of settlement funds. Probate Code Section 3500 grants a parent or guardian the authority to compromise a minor's claim before a lawsuit is filed. Probate Code Sections 3600–3613 regulate how the court must distribute and protect the settlement proceeds. If applicable, California Code of Civil Procedure (CCP) §§ 372–376 governs minors who are already active parties in a pending civil lawsuit. CCP § 372 mandates that a minor must appear via a Guardian Ad Litem (GAL) or a guardian of the estate to execute a compromise.

Lastly, California Rules of Court (CRC), Rules 7.950–7.955: Outlines specific pleading rules, disclosure mandates, attorney fee structures, and the protocols for placing funds into blocked bank account. This Court is required to review the Petition for Approval of Compromise of Claim or Action.

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition.

Ruling

1. The Petition is **granted**.
2. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on September 10, 2025 and the Amended Proposed Order to Deposit Funds into a Blocked Account lodged on June 26, 2026.
3. The Court orders Petitioner Jason Binsol to secure the Bank's signature on **Form MC-356** (*Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account*). Counsel or Petitioner must file this signed receipt back with the court within thirty (30) days to prove the money is safely deposited for Minor.
4. No appearance is required at the hearing on August 19, 2026.

19. 9:00 AM CASE NUMBER: N25-2261
CASE NAME: MIA ANDREWS VS. VISTA DEL MAR II HOMEOWNERS ASSOCIATION
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: VISTA DEL MAR II HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

Summary

Respondent Vista Del Mar II Homeowners Association filed a Motion for Judgment on the Pleadings ("Motion") on March 4, 2026. It is unopposed. The Court **grants** this Motion and will execute the proposed order lodged on March 4, 2026. No appearance is required at the hearing on August 12, 2026.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C22-01951
CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH
QUASH DEPOSITION OF TARA MULLINS AND FOR PROTECTIVE ORDER
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 20, 21 and 22. Before the Court are three motions scheduled for hearing:

1. Defendant John Muir Health's Motion for Judgment Based Upon Deemed Admissions
2. Plaintiff Dianna Jiminian's Motion for relief From Deemed Admissions